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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

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General Comment

See attached file(s). As a general summary, for reasons laid out in attached files, I very strongly oppose any attempt to carve out special exceptions in copyright law for the use of training generative model systems(AI).

Attachments

White House AI Action Plan Comment Letter

March 14, 2025

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a technologist who works on large scale software systems. I know many creatives, often writers, game designers, artists, and others in the general field. The current generative systems are a huge threat to their industries, and their existing work which has been stolen without compensation.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. Unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without consent or any compensation.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen, why bother creating it in the first place?

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.

- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. This work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I work with these systems on a daily basis, and I am required to understand how they function, and how to incorporate them for business process improvements. But sacrificing the hard work of hundreds of thousands of Americans to give a small cartel of private companies a stolen monopoly on generative tech will destroy more than it can ever create.

Thank you for the opportunity to comment on these important issues.